

Instructions for Petition for U Nonimmigrant Status and Supplement A, Petition for Qualifying Family Member of U-1 Recipient



Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-918
OMB No. 1615-0104
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What Is the Purpose of Form I-918 and Supplement A?

You should use Form I-918, Petition for U Nonimmigrant Status, to request temporary immigration benefits if you are a victim of certain qualifying criminal activity. You should also use Form I-918 if you received interim relief prior to publication of regulations regarding these benefits.

You should use Supplement A, Petition for Qualifying Family Member of U-1 Recipient, if you want to include your qualifying family members in your request of temporary immigration benefits.

Who May File Form I-918 and Supplement A?

You, the victim, should file Form I-918. You may include your qualifying family members by filing Supplement A with your original Form I-918. You can also file Supplement A at a later date for any qualifying family members not included with your original Form I-918.

1. **Principal Petitioner.** You must demonstrate all of the following:

- A.** You are a victim of criminal activity designated in section 101(a)(15)(U)(iii) of the Immigration and Nationality Act (INA). Such activity is defined as being the victim of one or more of the following or any similar activity in violation of Federal, state, or local criminal law:

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| (1) Abduction | (16) Manslaughter |
| (2) Abusive Sexual Contact | (17) Murder |
| (3) Attempt to Commit Any of the Named Crimes | (18) Obstruction of Justice |
| (4) Being Held Hostage | (19) Peonage |
| (5) Blackmail | (20) Perjury |
| (6) Conspiracy to Commit Any of the Named Crimes | (21) Prostitution |
| (7) Domestic Violence | (22) Rape |
| (8) Extortion | (23) Sexual Assault |
| (9) False Imprisonment | (24) Sexual Exploitation |
| (10) Felonious Assault | (25) Slave Trade |
| (11) Female Genital Mutilation | (26) Solicitation to Commit Any of the Named Crimes |
| (12) Fraud in Foreign Labor Contracting | (27) Stalking |
| (13) Incest | (28) Torture |
| (14) Involuntary Servitude | (29) Trafficking |
| (15) Kidnapping | (30) Unlawful Criminal Restraint |
| | (31) Witness Tampering |

- B.** You have suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity;

- C.** You possess information concerning the qualifying criminal activity of which you are a victim;

- D.** A Federal, state, or local government official investigating or prosecuting a qualifying criminal activity certifies (using Supplement B, U Nonimmigrant Status Certification) that you were, are, or are likely to be helpful to the official in the investigation or prosecution of the criminal act of which you are a victim; and
- E.** The criminal activity of which you are a victim violated the laws of the United States or occurred in the United States (including Indian country and military installations) or the territories and possessions of the United States.
- (1) United States** means the continental United States, Alaska, Hawaii, Puerto Rico, Guam, the Virgin Islands of the United States, and the Commonwealth of the Northern Mariana Islands.
- (2) Indian country** refers to all land within the limits of any Indian reservation under the jurisdiction of the United States Government, notwithstanding the issuance of any patent, and including rights-of-way running through the reservation; all dependent Indian communities within the borders of the United States, whether within the original or subsequently acquired territory thereof, and whether within or without the limits of a state; and all Indian allotments, the Indian titles to which have not been extinguished, including rights-of-way running through such allotments.
- (3) Military installation** means any facility, base, camp, post, encampment, station, yard, center, port, aircraft, vehicle, or vessel under the jurisdiction of the Department of Defense, including any leased facility, or any other location under military control.
- (4) Territories and possessions of the United States** means American Samoa, Swains Island, Bajo Nuevo (the Petrel Islands), Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Atoll, Navassa Island, CNMI, Palmyra Atoll, Serranilla Bank, and Wake Atoll.

2. Principal Petitioner filing for a qualifying family member, or currently holding U-1 status and filing for a qualifying family member. You must also demonstrate that:

- A.** If you are under 21 years of age on the date your petition is received by U.S. Citizenship and Immigration Services (USCIS), the qualifying family members for whom you are filing are your:
- (1)** Spouse;
- (2)** Unmarried children under 21 years of age;
- (3)** Parents; and/or
- (4)** Unmarried siblings under 18 years of age.
- B.** If you are over 21 years of age on the date your petition is received by USCIS, the qualifying family members for whom you are filing are your:
- (1)** Spouse; and/or
- (2)** Unmarried children under 21 years of age.

General Instructions

We provide free forms free through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your petition. USCIS will not accept a stamped or typewritten name in place of any signature on this petition. If you are under 14 years of age, your parent or legal guardian may sign the petition on your behalf. A legal guardian may also sign for a mentally incompetent person. If your petition is not signed, or if the signature is not valid, we will reject your petition. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. There is no filing fee for Form I-918 or Supplement A.

Evidence. When you file your petition, you must submit all evidence and supporting documents listed in the **Specific Instructions** and **General Requirements** sections of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to set up an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the petition;
2. You reviewed and understood all of the information contained in, and submitted with, your petition; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your petition.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must include the translator's signature, printed name, the signature date, and the translator's contact information.

USCIS Contact Center. For additional information on the petition and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-918 and Supplement A

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within Form I-918, use the space provided in **Part 8. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

3. If you need extra space to complete any item within Supplement A, use the space provided in **Part 11. Additional Information** or attach a separate sheet of paper. Type or print your name (Principal's) and A-Number (if any) or the A-Number of the Qualifying Family Member at the top of each sheet; indicate the **Page Number, Part Number, and Item Number** to which your answer refers; and sign and date each sheet.
4. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

Specific Instructions for Form I-918

This petition is divided into **Parts 1. - 8.** The following information should help you fill out the petition.

You must also file Form I-918, Supplement B that was completed and signed by a certifying official. (See the Supplement B Instructions for more information on how to file Supplement B.) You must submit Supplement B with the original Form I-918 petition package. If it is not attached, USCIS will deny your Form I-918.

Part 1. Information About You (Person filing this petition as a victim)

Item Numbers 1.a. - 1.c. Provide your full legal name. Do not provide a nickname.

Item Numbers 2.a. - 2.c. Other Names Used. Provide all the names you have used, including your maiden name, nicknames, and aliases, if applicable.

Item Numbers 3.a. - 3.h. Home Address. Provide your physical street address. You must include a street number and name or a rural route number. Do not provide a post office box (PO Box) number here.

Item Numbers 4.a. - 4.i. Safe Mailing Address (if other than Home Address). Provide a "safe mailing address" if you do not feel secure in receiving correspondence regarding this petition at your home address. You may provide a PO Box or the address of a friend, attorney, a community-based organization that is helping you, or any other address where you can safely and punctually receive mail.

Item Number 5. Alien Registration Number (A-Number) (if any). This is your USCIS file number. Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."

Item Number 6. U.S. Social Security Number. Provide your U.S. Social Security number. If you do not have a U.S. Social Security number, type or print "N/A."

Item Number 7. USCIS Online Account Number (if any). You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Item Number 8. Marital Status. Select the appropriate box.

Item Number 9. Sex. Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

Item Number 10. Date of Birth (mm/dd/yyyy). Provide your date of birth. (For example, type or print May 1, 1979 as 05/01/1979.)

Item Number 11. Country of Birth. Provide the name of the country where you were born.

Item Number 12. Country of Citizenship or Nationality. Provide the name of the country where you are a citizen or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print “stateless” and provide an explanation in **Part 8. Additional Information**.

Item Numbers 13. - 18. Form I-94 Arrival/Departure Record. If U.S. Customs and Border Protection (CBP) or USCIS issued you a Form I-94, Arrival/Departure Record, provide your Form I-94 number and date that your authorized period of stay expires or expired (as shown on Form I-94). The Form I-94 number is also known as the Departure Number on some versions of Form I-94.

NOTE: You may visit the CBP website at www.cbp.gov/i94 to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to Form I-102.

Passport and Travel Document Numbers. If you used a passport or travel document to travel to the United States, enter the passport or travel document information in the appropriate space on the petition, even if the passport or travel document is currently expired.

Item Numbers 19.a. - 21. Place and Date of Last Entry into the United States and Date Authorized Stay Expired. Provide the place and date (mm/dd/yyyy) where you last entered the United States, how you entered the United States, and the date your authorized stay expired.

Item Number 22. Current Immigration Status. Provide your current immigration status, regardless of how you entered the United States or if you have overstayed any legal status (as a visitor, student, etc.).

Part 2. Additional Information About You

Item Numbers 1. - 7.a. You must answer each question. If you answer “Yes” to any of the questions, you must provide an explanation in the space provided in **Part 8. Additional Information**.

Item Numbers 7.b. - 7.f. If you answer “Yes,” to **Item Number 7.a.**, select the type of proceedings. If you were in proceedings in the past and are no longer in proceedings, provide the date of action. If you are currently in proceedings, type or print “Current” in the appropriate date field. Select all applicable boxes. Use the space provided in **Part 8. Additional Information** to provide an explanation.

Item Numbers 8.a. - 10.d. Provide the date of entry, place of entry, and status under which you entered the United States for each entry during the five years preceding the filing of this petition. If your last entry occurred more than five years ago, write “N/A” or “none.”

Item Numbers 11.a. - 12.f. If you are outside the United States, provide the U.S. Consulate or inspection facility or a safe foreign mailing address you want notified if this petition is approved.

Part 3. Processing Information

Item Numbers 1.a. - 29.c. You must answer each question. If you answer “Yes” to any of the questions, you must provide an explanation in the space provided in **Part 8. Additional Information**.

Part 4. Information About Your Spouse and/or Children

Item Numbers 1.a. - 25. Provide the requested information about your family members included in this petition.

Item Number 26. Answer this question to indicate whether you are petitioning for one or more qualifying family members at this time. If you answer “Yes,” see information below on completing Supplement A on behalf of your qualifying family members.

Part 5. Petitioner's Statement, Contact Information, Declaration, and Signature

Item Numbers 1.a. - 7.b. Select the appropriate box to indicate whether you read this petition yourself or whether you had an interpreter assist you. If someone assisted you in completing the petition, select the box indicating that you used a preparer. Further, you must sign and date your petition and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). If you do not feel secure in receiving telephone calls regarding this petition at your home telephone number, provide a "safe telephone number" in this space. This number may be for a friend, your attorney, a community-based organization that is helping you, or any other number where you can safely and punctually receive a call or a message. Every petition **MUST** contain the signature of the petitioner (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

Part 6. Interpreter's Contact Information, Certification, and Signature

Item Numbers 1.a. - 7.b. If you used anyone as an interpreter to read the Instructions and questions on this petition to you in a language in which you are fluent, the interpreter must fill out this section, provide his or her name, the name and address of his or her business or organization (if any), his or her daytime telephone number, his or her mobile telephone number (if any), and his or her email address (if any). The interpreter must sign and date the petition.

Part 7. Contact Information, Declaration, and Signature of the Person Preparing this Petition, if Other Than the Petitioner

Item Numbers 1.a. - 8.b. This section must contain the signature of the person who completed your petition, if other than you, the petitioner. If the same individual acted as your interpreter and your preparer, that person should complete both **Part 6.** and **Part 7.** If the person who completed this petition is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this petition **MUST** sign and date the petition. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your petition is an attorney or accredited representative whose representation extends beyond preparation of this petition, he or she may be obliged to also submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with your petition.

Part 8. Additional Information

Item Number 1.a. - 7.d. If you need extra space to provide any additional information within this petition, use the space provided in **Part 8. Additional Information.** If you need more space than what is provided in **Part 8.**, you may make copies of **Part 8.** to complete and file with your petition, or attach a separate sheet of paper. Type or print your name and A-Number (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

We recommend that you review your copy of your completed petition before you go to your biometric services appointment at a USCIS ASC. At your appointment, USCIS will allow you to complete the petition process only if you are able to confirm, under penalty of perjury, that all of the information in your petition is complete, true, and correct. If you are not able to make that attestation in good faith at that time, we will require you to return for another appointment.

Specific Instructions for Supplement A, Petition for Qualifying Family Member of U-1 Recipient

If you are filing for a qualifying family member, you must complete Supplement A for each family member for whom you are filing. You may file Supplement A with your initial Form I-918 or at any time thereafter. If you are filing Supplement A after filing your initial Form I-918, you do not need to resubmit evidence that you submitted with the original petition.

Part 1. Family Member's Relationship To You (Principal)

Item Number 1. Select the appropriate box.

Part 2. Information About You (Principal)

Item Numbers 1.a. - 1.c. Provide your full legal name. Do not provide a nickname.

Item Number 2. Date of Birth (mm/dd/yyyy). Provide your date of birth. (For example, type or print May 1, 1979 as 05/01/1979.)

Item Number 3. Alien Registration Number (A-Number) (if any). This is your USCIS file number. Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from DHS or USCIS. If you do not have an A-Number, type or print "N/A."

Item Number 4. USCIS Online Account Number (if any). You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Item Number 5. Status of Your Form I-918. Select the appropriate box.

Part 3. Information About Your Qualifying Family Member (Derivative)

Item Numbers 1.a. - 1.c. Provide his or her full legal name. Do not provide a nickname.

Item Numbers 2.a. - 2.c. Other Names Used. Provide all the names he or she has used, including his or her maiden name, nicknames, and aliases, if applicable. If you need extra space to complete this section, use the space provided in **Part 11. Additional Information.**

Item Numbers 3.a. - 3.e. Residence or Intended Residence in the United States. Provide his or her intended physical street address. This must include a street number and name or a rural route number. Do not provide a PO Box number here.

Item Numbers 4.a. - 4.i. Safe Mailing Address (if other than Residence). Provide his or her "safe mailing address" if he or she does not feel secure in receiving correspondence regarding this supplement at his or her home address. You may provide a PO Box or the address of his or her friend, attorney, a community-based organization, or any other address where he or she can safely and punctually receive mail.

Item Number 5. A-Number (if any). This is his or her USCIS file number. Provide his or her A-Number. We use the A-Number to identify his or her immigration records. It begins with an "A" and can be found on correspondence they have received from DHS or USCIS. If they do not have an A-Number, type or print "N/A."

Item Number 6. U.S. Social Security Number. Provide his or her U.S. Social Security Number. If he or she does not have a U.S. Social Security number, type or print "N/A."

Item Number 7. USCIS Online Account Number (if any). He or she will only have a USCIS Online Account Number (OAN) if they previously filed a form that has a receipt number that begins with IOE. If he or she filed the form online, they can find their OAN in their account profile. If he or she mailed us the form, they can find their OAN at the top of the Account Access Notice we sent them. If he or she do not have a receipt number that begins with IOE, they do not have an OAN. The OAN is not the same as an A-Number.

Item Number 8. Date of Birth (mm/dd/yyyy). Provide his or her date of birth. (For example, type or print May 1, 1979 as 05/01/1979.)

Item Number 9. Country of Birth. Provide the name of the country where he or she was born.

Item Number 10. Country of Citizenship or Nationality. Provide the name of the country where he or she is a citizen or national. This is not necessarily the country where he or she was born. If they do not have citizenship in any country, type or print “stateless” and provide an explanation in **Part 11. Additional Information**.

Item Number 11. Marital Status. Select the appropriate box.

Item Number 12. Sex. Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

Item Number 13. Form I-94, Arrival/Departure Record. If your family member is physically present in the United States, provide the number on his or her Form I-94 issued at the time of entry. If CBP or USCIS issued your family member a Form I-94, Arrival/Departure Record, provide his or her Form I-94 number and date that their authorized period of stay expires or expired (as shown on Form I-94). The Form I-94 number is also known as the Departure Number on some versions of Form I-94.

NOTE: You may visit the CBP website at www.cbp.gov/i94 to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to Form I-102.

Item Numbers 14. - 18. Passport and Travel Document Numbers. If your family member used a passport or travel document to travel to the United States, enter either the passport or travel document information in the appropriate space on the supplement, even if the passport or travel document is currently expired.

Part 4. Additional Information About Your Qualifying Family Member

Item Numbers 1.a. - 1.d. Provide the date of last entry, place of last entry, and current immigration status for your family member if he or she is currently in the United States.

Item Numbers 2.a. - 2.e. Provide the date of entry, place of entry, and status at entry for your family member’s last entry if he or she has previously traveled to the United States but is not currently in the United States.

Item Numbers 3.a. - 4.f. If your family member is outside the United States, provide the U.S. Consulate or inspection facility or a safe foreign mailing address you want notified if this supplement is approved.

Item Numbers 5.a. - 6.f. If your family member was previously married, list the names of your family member’s prior spouses and the dates his or her marriages were terminated. You must attach documentation such as divorce decrees or death certificates.

Item Numbers 7.a. - 7.f. Indicate whether your family member was or is in immigration proceedings. If you answer “Yes,” select the type of proceedings. If your family member was in proceedings in the past and is no longer in proceedings, provide the date of action. If your family member is currently in proceedings, type or print “Current” in the appropriate date field. Select all applicable boxes. Use the space provided in **Part 11. Additional Information**.

Item Number 8. Answer “Yes” if your family member is living in the United States and would like an Employment Authorization Document. If you answer “Yes,” submit Form I-765, Application for Employment Authorization Document, separately.

NOTE: If your family member is living outside the United States, he or she is not eligible to receive employment authorization until he or she is lawfully admitted to the United States. Do not file Form I-765, Application for Employment Authorization, for a family member living outside the United States.

Part 5. Processing Information

Item Numbers 1.a. - 29.c. You must answer each question on behalf of your family member. If you answer “Yes” to any of the questions, you must provide an explanation in the space provided in **Part 11. Additional Information**.

Part 6. Information About Your Qualifying Family Member's Spouse and/or Children

Item Numbers 1.a. - 12. Provide the requested information about your family member's spouse and/or children. If you need extra space to complete this section, use the space provided in **Part 11. Additional Information**.

Part 7. Petitioner's Statement, Contact Information, Declaration, and Signature

Item Numbers 1.a. - 7.b. Select the appropriate box to indicate whether you read this supplement yourself or whether you had an interpreter assist you. If someone assisted you in completing the supplement, select the box indicating that you used a preparer. Further, you must sign and date your supplement and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). Every supplement **MUST** contain the signature of the petitioner (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

Part 8. Qualifying Family Member's Statement, Contact Information, Declaration, and Signature

Item Numbers 1.a. - 6.b. If your family member is in the United States, he or she must verify the accuracy of the information recorded on this supplement and must also complete this section of the supplement. He or she must select the appropriate box to indicate that he or she either read this supplement himself or herself or whether he or she had an interpreter assist him or her. If someone assisted him or her in completing the supplement, select the box indicating that he or she used a preparer. Further, he or she must sign and date the supplement and provide his or her daytime telephone number, mobile telephone number (if any), and email address (if any). Every supplement **MUST** contain the signature of the qualifying family member (or parent or legal guardian, if applicable). A stamped or typewritten name or a scanned, faxed, or emailed copy in place of an original signature is not acceptable. A legal guardian may sign for a mentally incompetent person. If the qualifying family member does not sign or date the supplement, USCIS may return Supplement A as incomplete.

Part 9. Interpreter's Contact Information, Certification, and Signature

Item Numbers 1.a. - 7.b. If you and your family member used anyone as an interpreter to read the instructions and questions on this supplement to you in a language in which you are fluent, the interpreter must fill out this section, provide his or her name, the name and address of his or her business or organization (if any), his or her daytime telephone number, his or her mobile telephone number (if any), and his or her email address (if any). The interpreter must sign and date the supplement.

Part 10. Contact Information, Declaration, and Signature of the Person Preparing this Supplement, if Other Than the Petitioner or Qualifying Family Member

Item Numbers 1.a. - 8.b. This section must contain the signature of the person who completed your supplement, if other than you, the petitioner or your family member. If the same individual acted as your interpreter and your preparer, that person should complete both **Part 9.** and **Part 10.** If the person who completed this supplement is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this supplement **MUST** sign and date the supplement. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your supplement is an attorney or accredited representative whose representation extends beyond preparation of this supplement, he or she may be obliged to also submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with your supplement.

Part 11. Additional Information

Item Numbers 1.a. - 7.d. If you need extra space to provide any additional information within this supplement, use the space provided in **Part 11. Additional Information**. If you need more space than what is provided in **Part 11.**, you may make copies of **Part 11.** to complete and file with your supplement, or attach a separate sheet of paper. Type or print your name (Principal) and A-Number (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

General Requirements

Required Initial Evidence to Support Form I-918

You **must** include the following initial evidence with your Form I-918.

If you, the petitioner, requested and received interim relief, USCIS will consider the evidence you submitted in conjunction with your request for interim relief as part of the petition package. In this instance, you may choose to file additional evidence with Form I-918 to add to the evidence submitted with the request for interim relief.

NOTE: You may use one document to demonstrate more than one element of your claim.

1. **Supplement B.** You **must** submit an original, properly and timely executed Supplement B certification with your Form I-918. However, petitioners who requested and received U interim relief are not required to file Supplement B.

USCIS will give this certification significant weight as evidence demonstrating that you are a victim; that you possess information about the criminal activity; that the criminal activity violated the laws of the United States or occurred in the United States (including Indian country and military installations) or the territories and possessions of the United States; and that you were, are, or are likely to be helpful in the investigation or prosecution of the qualifying criminal activity of which you are a victim. You must also provide any additional relevant evidence to help meet these eligibility requirements.

2. **Evidence You Are the Victim of Qualifying Criminal Activity.** You must demonstrate you have suffered direct and proximate harm as a result of the commission of qualifying criminal activity. You must include with your Form I-918 evidence establishing you are a victim of qualifying criminal activity. You may use Supplement B to help establish this eligibility requirement and include additional evidence you want USCIS to consider. A non-exhaustive list of the types of evidence you may submit includes, but is not limited to:

- A. Trial transcripts;
- B. Court documents;
- C. Police reports;
- D. News articles;
- E. Affidavits; and
- F. Orders of protection.

3. **Evidence You Have Suffered Substantial Physical or Mental Abuse.** You must present credible evidence that demonstrates you suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity. You may use Supplement B to help establish this eligibility requirement and include additional evidence you want USCIS to consider.

The evidence must show the nature and severity of the abuse you suffered. Factors USCIS will consider to determine whether the abuse is substantial include:

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- A. The nature of the injury inflicted;
 - B. The severity of the perpetrator's conduct;
 - C. The severity of the harm you suffered;
 - D. The duration of the infliction of the harm; and
 - E. The extent to which there is permanent or serious harm to your appearance, health, or physical or mental soundness.

No single factor is a prerequisite to establish that the abuse suffered was substantial, nor does the existence of one or more of the factors automatically create a presumption that the abuse was substantial. If the criminal activity caused the aggravation of a pre-existing physical or mental injury, USCIS will consider that aggravation in evaluating whether the harm constitutes substantial physical or mental abuse. If the criminal activity involved a series of acts or occurred repeatedly over a period of time, document the pattern of abuse. USCIS will consider the abuse in its totality. USCIS may consider a series of acts taken together to have caused substantial physical or mental abuse even where no single act alone rises to that level.

You are encouraged to provide and document all credible evidence, particularly when documenting a pattern of abuse. A non-exhaustive list of suggested forms of evidence includes, but is not limited to:

- A. Reports and/or affidavits from judges and other court officials, medical personnel, school officials, clergy, social workers, and other social service personnel;
- B. Orders of protection and related legal documents;
- C. Photos of your visible injuries supported by affidavits; and
- D. Affidavits from witnesses, acquaintances, or family members who have personal knowledge of the facts regarding the criminal activity.

- 4. Evidence You Possess Information Concerning Qualifying Criminal Activity.** You must submit evidence demonstrating you possess information concerning the qualifying criminal activity of which you were a victim. You must demonstrate that you have knowledge of details concerning the criminal activity that would assist in the investigation or prosecution of that criminal activity.

You may use Supplement B to help establish this eligibility requirement and include additional evidence you want USCIS to consider. Additional evidence to establish you possess information about the qualifying criminal activity may include, but is not limited to, reports and affidavits from police, judges, and other court officials.

In cases where the petitioner is a child under 16 years of age or is incapacitated or incompetent, the parent, guardian, or "next friend" can satisfy this requirement by submitting the evidence on behalf of the petitioner. "Next friend" is a person who appears in a lawsuit to act for the benefit of a victim under 16 years of age or incapacitated or incompetent, who has suffered substantial physical or mental abuse as a result of being a victim of qualifying criminal activity. The next friend is not a party to the legal proceeding and is not appointed as a guardian. Evidence to meet this eligibility requirement must include documents establishing the age, incapacity, or incompetence of the victim. Examples of such evidence include, but are not limited to:

- A. Birth certificate of the petitioner;
- B. Court documents demonstrating recognition of an individual as the petitioner's next friend;
- C. Medical records; or
- D. Reports of licensed medical professionals demonstrating the incapacity or incompetence of the petitioner.

- 5. Evidence of Helpfulness.** You must submit evidence demonstrating that you were, are, or are likely to be helpful to a certifying official in the investigation or prosecution of the qualifying criminal activity of which you are a victim.

You may use Supplement B to help establish this eligibility requirement and include additional evidence you want USCIS to consider. Examples of such evidence include, but are not limited to:

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- A. Trial transcripts;
 - B. Court documents;
 - C. Police reports;
 - D. News articles;
 - E. Copies of reimbursement forms for travel to and from court; and
 - F. Affidavits of other witnesses or officials.

In cases where the petitioner is a child under 16 years of age or is incapacitated or incompetent, the parent, guardian, or next friend can satisfy this requirement by submitting the evidence on behalf of the victim. Evidence to meet this eligibility requirement must include documents establishing the age, incapacity, or incompetence of the victim. Examples of such documentation include, but are not limited to:

- A. Birth certificate of the petitioner;
- B. Court documents demonstrating recognition of an individual as the petitioner's next friend;
- C. Medical records; or
- D. Reports of licensed medical professionals demonstrating the incapacity or incompetence of the petitioner.

6. Evidence that Criminal Activity is Qualifying and Violated United States Law or Occurred in the United States.

You must submit evidence that the criminal activity of which you are a victim is included in the list of criminal activities contained in section 101(a)(15)(U)(iii) of the INA and included in these Instructions, and that the criminal activity violated a U.S. Federal law that provides for extraterritorial jurisdiction, or occurred in the United States (including in Indian country and military installations) or the territories and possessions of the United States.

You may use Supplement B to help establish this eligibility requirement and include additional evidence you want USCIS to consider. An example of such additional evidence includes, but is not limited to:

- A. A copy of the statutory provisions showing the elements of the offense or factual information about the criminal activity demonstrating that it is similar to a crime contained in the list of qualifying criminal activity contained at section 101(a)(15)(U)(iii) and in these Instructions; or
- B. If the criminal activity occurred outside the United States, the additional evidence may include a copy of the statutory provisions providing for the extraterritorial jurisdiction and documentation showing that the criminal activity violated Federal law and is prosecutable in a Federal court.

7. Personal Statement. You must provide a personal narrative statement. This statement should describe the qualifying criminal activity of which you are a victim and must include the following information:

- A. The nature of the criminal activity;
- B. When the criminal activity occurred;
- C. Who was responsible;
- D. The events surrounding the criminal activity;
- E. How the criminal activity came to be investigated or prosecuted; and
- F. What substantial physical and/or mental abuse you suffered as a result of having been the victim of the criminal activity.

When the petitioner is under 16 years of age, incapacitated, or incompetent, a parent, guardian, or next friend may submit a statement in lieu of the victim. The statement should contain as much information surrounding the criminal activity and physical and/or mental abuse as possible.

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- 8. Waiver of Grounds of Inadmissibility.** To be eligible for U nonimmigrant status, you must be admissible to the United States. If you or your qualifying family members answered “Yes” to any of the questions in **Part 3.** of Form I-918 or **Part 5.** of Supplement A, USCIS may deem you or your qualifying family members as inadmissible.

If you and/or your qualifying family members are or become inadmissible for conduct that occurs while the petition for U nonimmigrant status is pending, you and/or your family members are not eligible for U nonimmigrant status unless the ground of inadmissibility is waived by USCIS.

Petitioners seeking a waiver of inadmissibility must submit Form I-192, Application for Advance Permission to Enter as a Nonimmigrant. You may file your Form I-192 with your Form I-918.

Supplement A and Evidence to Support Supplement A

You **must** include the following evidence to establish derivative U nonimmigrant status on Supplement A.

1. A completed Supplement A for each qualifying family member you want included on your Form I-918.
2. Credible documentation of the claimed relationship. The documents acceptable for this purpose are below.

If you are filing for your:

- A. Husband or wife.** Submit a copy of your marriage certificate issued by a civil authority. If either you or your spouse were married before, you must submit documents to show all previous marriages were legally terminated (for example, provide a divorce decree or death certificate);
- B. Child and you are the mother.** Submit a copy of the child’s birth certificate showing your name and the name of the child, issued by a civil authority;
- C. Child and you are the father.** Submit a copy of the child’s birth certificate issued by a civil authority showing both parents’ names. If the child was born out of wedlock, give proof that a parent/child relationship exists or existed (for example, provide the child’s birth certificate showing your name and evidence that you have financially supported the child. In some cases, a blood test may be necessary);
- D. Mother.** Submit a copy of your birth certificate issued by a civil authority showing your name and your mother’s name;
- E. Father.** Submit a copy of your birth certificate showing the names of both parents. Also, provide a copy of your parents’ marriage certificate establishing that your father was married to your mother before you were born and copies of documents showing that any prior marriages of either your father or mother were legally terminated. If you are filing for a stepparent or adoptive parent, or if you are filing for your father and were not legitimated before you reached 18 years of age, also see **Items C., G., and H.** in this section;
- F. Stepparent/stepchild.** If your Form I-918 is based on a stepparent-stepchild relationship, you must file your petition with a copy of the marriage certificate of the stepparent to the child’s natural parent, showing that the marriage occurred before the child reached 18 years of age and copies of documents showing that any prior marriages were legally terminated;

G. Adoptive parent or adopted child. If you and the person you are filing for are related by adoption, you must submit a copy of the adoption decrees showing that the adoption took place before the child reached 16 years of age. If you adopted the sibling of a child you already adopted, you must submit a copy of the adoption decrees showing that the adoption of the sibling occurred before that child reached 18 years of age. In either case, you must also submit copies of evidence that the child was in the legal custody of and jointly resided with the adoptive parents for at least two years before or after the adoption. Only a court or recognized government entity may grant legal custody and usually grants legal custody at the time the adoption is finalized. However, if legal custody is granted by a court or recognized government entity prior to the adoption, that time will count to fulfill the two-year legal custody requirement; or

H. Your unmarried sibling under 18 years of age. Submit a copy of your birth certificate and a copy of your sibling's birth certificate showing that you have at least one common parent. If you and your sibling have a common father but different mothers, submit copies of the marriage certificates of the father to each mother and copies of documents showing that any prior marriages of either your father or mothers were legally terminated. If you and your sibling are related through adoption or through a stepparent, or if you have a common father and either of you were not legitimated before you reached 18 years of age, also see **Items F. and G.** in this section.

3. Unavailable Documents. If the required documents are not available, submit a statement of why the evidence is not available and provide secondary evidence such as the following:

A. Church records. A certificate under the seal where the baptism, dedication, or comparable rite occurred within two months after the birth, showing the date and place of the child's birth, date of the religious ceremony, and the names of the child's parents;

B. Census records. State or Federal census records showing the names, places and dates of birth, or ages of the persons listed;

C. School records. A letter from the authority of the school attended (preferably the first school) showing dates of admission to the school, child's date and place of birth, and the names and birthplaces of both parents, if shown in the school records; and/or

D. Affidavits. Written statements sworn to or affirmed by two persons who were living at the time and who have personal knowledge of the event you are trying to prove. (For example, provide the date and place of birth, marriage, divorce, or death.) The person making the affidavit need not be a citizen of the United States. Each affidavit should contain the following:

(1) The relationship, if any, between you and the person making the affidavit;

(2) Full information concerning the event; and

(3) Complete details concerning how the person acquired knowledge of the event.

NOTE: In a case where you or your family member's name has changed from what is shown on the supporting document, submit the legal document authorizing such name change. (For example, provide a marriage certificate, adoption decree, or court order.)

NOTE: USCIS may require a statement from the appropriate civil authority certifying that the necessary document is unavailable.

Where To File?

Please see our website at www.uscis.gov/I-918 for the most current information about where to file Form I-918 and Supplement A.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

USCIS will reject any Form I-918 or Supplement A that is not signed with a notice that Form I-918 or Supplement A is deficient. You may correct the deficiency and resubmit Form I-918 and/or Supplement A. A petition or supplement is not considered properly filed until accepted by USCIS.

Initial Processing. Once USCIS accepts your Form I-918 or Supplement A, we will check it for completeness. If you do not properly complete this petition or supplement, you will not establish a basis for your eligibility and we may reject or deny your Form I-918 or Supplement A.

Requests for More Information. USCIS may request that you provide more information or evidence to support your Form I-918 or Supplement A. We also may request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you and/or your family member appear at a USCIS office for an interview based on your petition or supplement. During your interview, USCIS may require you and/or your family member to provide your biometrics to verify your identity and/or update background and security checks.

Employment Authorization. If you are currently residing in the United States and your Form I-918 is approved, you will receive employment authorization incident to status and USCIS will send you an Employment Authorization Document as evidence of that authorization.

Derivative family members are also employment authorized incident to status, however an employment authorization document is not automatically issued. If he or she wishes to obtain an Employment Authorization Document, as evidence of authorization, he or she may file Form I-765, Application for Employment Authorization.

NOTE: Derivative family members living outside the United States are not eligible to receive employment authorization until they lawfully enter the United States. Do **not** file Form I-765 for a derivative family member who is outside the United States.

Employment authorization can only be issued after the underlying U nonimmigrant status petition is approved, regardless of when the Form I-765, Application for Employment Authorization, document is filed.

If the statutory cap is reached in a fiscal year and USCIS uses the waiting list process described at 8 CFR 214.14(d)(2), petitioners for U nonimmigrant status and derivatives in the United States can apply for employment authorization using Form I-765, Application for Employment Authorization, based on deferred action. An application for employment authorization based on deferred action can only be approved after DHS has deferred action in your case, regardless of when the Form I-765 is filed.

Decision. The decision on Form I-918 and Supplement A involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

Prohibition on Disclosure of Information. Information concerning U nonimmigrant status petitioners and derivatives is protected under 8 U.S.C. Section 1367. The disclosure of information relating to a pending or approved Form I-918 or Supplement A is prohibited except in certain limited circumstances.

USCIS Forms and Information

To ensure you are using the latest version of Form I-918 and Supplement A, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-918 and/or Supplement A, we will deny your Form I-918 and/or Supplement A and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on Form I-918 and Supplement A, and the associated evidence, is collected under the Immigration and Nationality Act, sections 101(a)(15)(U), 214(p), 212(d)(14), 8 CFR 212.17 and 214.14.

PURPOSE: The primary purpose for providing the requested information on Form I-918 and Supplement A is to request temporary immigration benefits if you or a qualifying family member are a victim of certain qualifying criminal activity. DHS uses the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number (if applicable), and any requested evidence, may delay a final decision or result in denial of your Form I-918 and/or Supplement A.

ROUTINE USES: DHS may, where allowable under relevant confidentiality provisions, share the information you provide on Form I-918 and Supplement A as well as any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-001 - Alien File, Index, and National File Tracking System, DHS/USCIS-007 - Benefits Information System, and DHS/USCIS-018 Immigration Biometric and Background Check] and the published privacy impact assessment [DHS/USCIS/PIA-016a Computer Linked Application Information Management System and Associated Systems] which you can find at www.dhs.gov/privacy. DHS may also share the information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for Form I-918 is estimated at 5 hours per response, and the public reporting burden for Supplement A is estimated at 1 hour and 30 minutes per response, including the time for reviewing instructions, gathering the required documentation and information, completing the petition, preparing statements, attaching necessary documentation, and submitting the petition and supplement. The collection of biometrics is estimated to require 1 hour and 10 minutes. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0104. **Do not mail your completed Form I-918 or Supplement A to this address.**